United States, under the chancery powers vested in that court, by the constitution of the United States, giving chancery jurisdiction to the courts of the United States. *Livingston* v. *Story*.....*351

2. The local laws of a state can never confer jurisdiction on the courts of the United States; they can only furnish rules to ascertain the rights of the parties, and thus assist in the administration of the proper remedies where the jurisdiction is vested by the laws of the United States. *The Steamboat Orleans*.....*175

MANDAMUS.

1. Motion for a rule on the district judge of the district court of the United States for the Missouri district, to show cause why a *mandamus* should not issue from the supreme court, commanding him to order an execution to issue on a judgment entered in that court in the case of the Postmaster-general of the United States *v.* Rector's administrator. The motion was founded on an attested copy of the record of the proceedings in the district court; by which it appeared, that the district judge, on the motion of the district-attorney of the United States, for an order for an execution on this judgment, "after mature deliberation thereon," overruled the motion. The rule to show cause was refused. *Postmaster-General* v. *Trigg* *173

2. The court have looked into the practice of this court, upon motions of this sort, and it does not appear to have been satisfactorily settled; for anything that appears, in this case, there may have been sufficient reason for the decision of the district court, overruling the motion for an execution; and there is nothing in the record, to create a *primâ facie* case of mistake, misconduct or omission of duty, on the part of the district court. In such a state of facts, the court are bound to presume that everything was rightly done by the court, until some evidence is offered to show the contrary; and they cannot, upon the evidence before the court, assume that there is any ground for its interposition..*Id.*

3. A rule to show cause, is a rule upon the judge to explain his conduct; and implies that a case had been made out, which makes it proper that this court should know the reasons for his decision. When the record does not show mistake, misconduct or omission of duty on the part of the court; unless such a *primâ facie* case to the contrary is made out, supported by affidavit, as would make it the duty of the court to interpose; such a rule ought not to be granted.....*Id.*

MASTER AND SLAVE.

1. The acts of congress which prohibit the slave-trade, and the importation of persons of color into the United States, do not apply to the case of a master, a citizen of the United States, who carries his slaves with him abroad, as his servants; and afterwards brings or sends them back to the United States, after such temporary absence. *The Ship Garonne*.....*73

PARTIES TO A WRITTEN INSTRUMENT.

1. The principle settled by this court, in the case of the Bank of the United States *v.* Dunn, 6 Pet. 51, goes to the exclusion of the evidence of a party to a negotiable instrument, upon the ground of the currency given to such instruments, by the name of the witness called to impeach their validity, and does not extend to a case in which that reasoning does not, apply. *United States* v. *Leffler*.....*86

PART-OWNERS OF VESSELS.

See ADMIRALTY, 3.

PASSENGER LAWS.

1. The passenger laws of the United States apply only to passengers whilst on their voyage and until they have landed; after the landing of passengers, the laws of the United States do not come in conflict with the laws of a state, which obliges security to be given against their becoming chargeable as paupers; and for their removal out of the state, in the event of their having become so chargeable. *New York* v. *Miln*.....*102

2. Persons are not the subject of commerce; and not being imported goods, they do not fall within the reasoning founded upon the construction of a power given to congress to regulate commerce, and the prohibition of the states from imposing a duty on foreign goods .....*Id.*

PENNSYLVANIA LAND TITLES.

1. Construction of the compact between the states of Pennsylvania and Virginia, of 1780, relative to the titles to lands situated in the territory, the right to which was by that compact settled between those states. *Marlatt* v. *Silk*.....*1

PLEDGE.

1 Under the law of Louisiana, there are two kinds of pledges, the pawn and the *anti-*